

that there is a reasonable possibility that the complaint could have been amended to cure the defect "is squarely on the plaintiff. [Citation.]" (*Id.*; see also *Campbell v. Regents of University of California* (2005) 35 Cal.4th 311, 320.) The plaintiff must "identify specific facts showing the complaint can be amended to state a viable cause of action. [Citation.]" (*Minnick v. Automotive Creations, Inc.* (2017) 13 Cal.App.5th 1000, 1004.)

Here, this court stated at the last hearing on demurrer that Plaintiff was "granted leave one additional time." (Ntc. of Ruling filed 6/18/26.) Defendants insist that leave to amend is not appropriate. Plaintiff has had multiple opportunities to amend, but has failed to show that the challenged claims are capable of amendment.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2600022	GOLDBERG VS GOLDENVOICE LLC	DEMURRER ON 2ND AMENDED COMPLAINT OF TESS GOLDBERG

Tentative Ruling: Granted.

Moving Defendant to provide notice pursuant to CCP 1019.5.

Punitive damages allegations and prayer for relief in 2nd Amended Complaint are ordered stricken.